

TENTATIVE RULING(S) FOR July 22, 2026

Department S22 – Judge David Driscoll

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CIVSB2205587

CHRISTOPHER TATUM v. G AND C SWAN, INC.

TENTATIVE RULING

Plaintiff Christopher Tatum contends he checked himself into a detox facility in Upland in May 2021 and, while there, was subjected to dependent adult abuse. Tatum then commenced suit in April 2022 against those operating the facility, namely, Defendants G and C Swan, Inc. and His House (though the latter is simply the DBA of the former). The operative first amended complaint (FAC) was then filed in December 2022.

The FAC indicates that at the time Tatum checked in, he had an undiagnosed perforated ulcer that rapidly deteriorated. The condition became so bad that Tatum was unable to care for himself. The need for medical care was also obvious and Defendants failed to take action despite Tatum's pleas. Ultimately, Tatum was admitted to the hospital for emergency surgery. Overall, the FAC contains claims for (1) general negligence, (2) dependent adult abuse, and (3) intentional infliction of emotional distress.

Motion to Quash

Through the course of discovery, and on May 13, 2026, Tatum served a subpoena upon the Department of Health Care Services (DHCS), seeking consumer complaints against His House over medical care, the quality of treatment, staff behavior, and safety or abuse of residents for any rehabilitation facility owned or operated by G and C Swan, Inc. in California from January 1, 2011 to the present.

A week later, His House served objections upon Tatum and DHCS, contending the subpoena is overbroad, vague, ambiguous, burdensome, oppressive, seeks irrelevant documents, and violates its and third parties' privacy rights. His House also demanded the withdrawal of the subpoena. After it was not withdrawn, His House filed the pending motion to quash, advancing the objections. The motion is also made on the grounds that the deposition officer identified in the subpoena, Tatum's counsel, is financially interested in the action, which is improper under Code of Civil Procedure section 2020.420. The motion is supported by a declaration from attorney Ida Farahmand, the subpoena, and the objections to the subpoena.

The motion is opposed by Tatum on the grounds that the subpoena seeks documents that will help establish there were similar complaints involving the same staff and His House failed to take reasonable steps to prevent similar harm. The opposition is supported by a declaration from attorney Erin Powers.

Analysis

Code of Civ. Proc. section 1987.1, subdivision (a) states:

If a subpoena requires the attendance of a witness or the production of books, documents ... at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personal identifying information is sought may bring a motion to quash. (Code Civ. Proc., §1987.1, subd. (b).) If a party seeks to subpoena personal records (e.g., medical records), then the party must serve on the consumer a notice along with the subpoena. (Code

Civ. Proc., §1985.3, subd.'s (b) and (e).) The consumer whose records are sought may move to quash or modify the subpoena under section 1987.1. (Code Civ. Proc., § 1985.3, subd. (g).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code of Civ. Proc., §1985.3, subd. (g).)

A “motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled.” (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-6 at § 8:535 [citing Cal. Rules Ct., rule 3.1345(a)(5)].) The failure to comply with the separate statement requirement is grounds for denial of the motion. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, rehearing denied, review denied.)

Defendant's Motion

In this case, the subpoena called for production of documents on June 4, 2026 and the motion was filed and served on June 1. The motion was therefore not filed and served five days before the production date. In any event, the five-day time limit for service is not jurisdictional and the Court can grant a motion to quash that is served even after the date set for production. (*Slagle v. Sup.Ct. (Maryon)* (1989) 211 Cal.App.3d 1309, 1313.) However, the motion is also not supported by a separate statement. There is also no indication His House attempted to meet and confer, beyond serving the objections and demanding that the subpoena be withdrawn. While there is no express meet and confer requirement in section 1987.1, the statute still requires that the motion must be “reasonably made.”

In any event, and as for the substance of the objections, His House contends that the subpoena is vague and ambiguous, but such objections are generally designed to protect a witness during oral examination. (See *W. Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 421.) The subpoena is otherwise straightforward in seeking all complaints about medical care, staff behavior, safety, or abuse against His House.

While His House also objects on burden grounds, such an objection generally must be supported by evidence, such as a declaration outlining the quantum of work required to respond to the discovery. (*W. Pico Furniture Co., supra*, 56 Cal.2d at p. 421.) No such evidence was submitted in this case. Moreover, there is authority suggesting that His House lacks standing to assert such an objection since it is not the deponent with the obligation to respond to the subpoena. (See *Doe v. Kaiser Found. Health Plan, Inc.*, No.

23-cv-02865-EMC (*PHK*), 2023 WL 8714880 at *3 (N.D. Cal. Dec. 17, 2023) [defendant lacked standing to assert relevancy, overbreadth and burden objections to a subpoena, “unless the party claim[ed] a personal right or privilege with respect to the documents requested in the subpoena”].)

As for the relevancy objection, the first and most basic limitation on the scope of discovery is the information sought must be relevant to the “subject matter” of the pending action or to the determination of a motion in that action. (Code Civ. Proc., § 2017.010.) The phrase “subject matter” does not lend itself to precise definition. However, it is broader than relevancy to the issues (which determines admissibility of evidence at trial). (*Bridgestone/Firestone, Inc. v. Sup.Ct. (Rios)* (1992) 7 Cal.App.4th 1384, 1392.) For discovery purposes, information should be regarded as “relevant to the subject matter” if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof. (*Gonzalez v. Sup.Ct. (City of San Fernando)* (1995) 33 Cal.App.4th 1539, 1546 (citing text); *Lipton v. Sup.Ct. (Lawyers’ Mut. Ins. Co.)* (1996) 48 Cal.App.4th 1599, 1611.)

Here, the FAC suggests that His House was negligent in the selection, hiring and “appointment” of each and every other Defendant, which would include the Doe defendants. (FAC at ¶ 9.) The FAC further avers that His House had a duty to ensure that its staff was adequately trained and knowledgeable. (FAC at ¶ 23.) Thus, prior complaints about staff care, behavior, abuse or safety concerns (as is requested by the subpoena) could arguably establish that His House staff was inadequately trained or negligently hired or selected for their respective job tasks..

However, His House notes that the request seeking records from January 1, 2011 to the present, is not limited to the facility where Tatum was located or to the employees that oversaw his care, nor is the subpoena limited to the type of misconduct alleged in this case. That argument is well taken; there is a lack of connection between the breadth of the subpoena and the allegations. The subpoena should be limited to complaints against those individuals providing care or supervision to Tatum. As a secondary category of documents, Tatum could seek complaints made about the failure to provide medical care or intervene at the same facility he attended (or some similarly worded request that ties the document requests to the misconduct Tatum experienced). If the subpoena were reworded in this manner, the temporal scope would not necessarily be an issue.

As for the privacy claim, under the California Constitution individuals have a right to privacy that protects one’s information. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) However, the right to privacy is not absolute. For instance, in the personal injury context a party waives any privacy interest as to the

claims asserted and to any conditions that could be an alternative source for the alleged injury. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840, 842; *Britt v. Superior Court* (1978) 20 Cal.3d 844, 863-64.) Even so, any waiver of the right to privacy only applies “to matters embraced by the action” and “even when a plaintiff files an action that places his or her medical records at issue, waivers of constitutional rights are narrowly construed and not lightly found.” (*Bearman v. Superior Court* (2004) 117 Cal.App.4th 463, 473.)

In this case, if the subpoena were limited as outlined above, Tatum’s need for the discovery would outweigh the privacy interests of those involved in the complaints, especially since the subpoena would seek documents directly related to those involved in the alleged misconduct at issue in this case or working at the same facility. Tatum also concedes that personally identifying information about patients can be redacted. Additionally, the court observes that as to privacy or confidentiality concerns, the court entered a Stipulated Protective Order on April 28, 2025, which expressly protects the privacy rights of third parties as well as the litigants in this case.

Finally, His House also contends that the subpoena violates Code of Civil Procedure section 2020.420, which provides “[t]he officer for a deposition seeking discovery only of business records for copying under this article shall be a professional photocopier registered under Chapter 20 (commencing with Section 22450) of Division 8 of the Business and Professions Code, or a person exempted from the registration requirements of that chapter under Section 22451 of the Business and Professions Code. This deposition officer shall not be financially interested in the action, or a relative or employee of any attorney of the parties. Any objection to the qualifications of the deposition officer is waived unless made before the date of production or as soon thereafter as the ground for that objection becomes known or could be discovered by reasonable diligence.”

Code of Civil Procedure Section 22451 identifies members of the State Bar or his or her employees, agents, or independent contractors as being exempt (or rather the statute states “this chapter” does not apply to such licensed attorneys). Thus, “[t]he subpoenaing attorney may either engage a registered professional photocopier” or he or she “may assume responsibility for the copying.” (Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-6 at § 8:547 [citing Code Civ. Proc., § 2020.420 and Evid. Code, § 1560, subd. (e)].)

As for the “shall not be financially interest in the action” language, it appears that language must be in reference to something other than an attorney’s mere contingency fee interest in the lawsuit (which has not been shown to even exist in this case, i.e., His House merely assumes counsel has taken the case on a

contingency or is not acting pro bono). Otherwise, counsel could not, as the practice guide above suggests, “assume responsibility for the copying.”

TENTATIVE RULING

The court finds that the subpoena is overbroad as to scope and time. The motion to quash is granted without prejudice to the issuance of a more particularized subpoena. The court provides the following advisory opinion in the event there is another attempt to subpoena records from the DHCS in this matter.

The subpoena should be limited to:

1. Staff members who were permanently or temporarily located at the same facility as Tatum and who were directly responsible for the provision of care to Tatum while at the subject facility.
2. Staff members coming into contact with Tatum while at the subject facility.
3. Complaints involving said staff members at the subject facility refusing a client/residence's request for referral or transport to an outside medical facility for treatment or evaluation.
4. Complaints involving said staff members at the subject facility impeding a client/residence from seeking medical treatment or evaluation outside the facility.
5. Complaints involving said staff members ridiculing, demeaning or abusing a client/residence at the subject facility where the plaintiff was located.
6. The subpoena should have the same language regarding redaction of client/resident or patient personal information as contained in the present subpoena.
7. A prospective subpoena should be limited to the period of five years preceding May 2021 through the present.